IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-III

Item No.178
CAA-246/ND/2017

IN THE MATTER OF:
Ajay Fincap Consultants (P) Ltd & Ors. **...APPELLANT**
Vs.
Regional Director **....RESPONDENT**

SECTION
U/s. 230-232

Order delivered on 28.1.2021

CORAM:
CH. MOHD. SHARIEF TARIQ
MEMBER (JUDICIAL)
NARENDER KUMAR BHOLA
MEMBER (TECHNICAL

PRESENT:
For the Applicant/OC : Mr. Rakesh Kumar, Mrs Preeti Kashyap and Mr. Ankit Sharma appearing for the petitioner
Adv- Mr. Afnaan Siddiqui (For Petitioner Company No.5)
For the Respondent/CD :
For the Intervener : Ms. Lakshmi Gurung and Ms. Adeeba Mujahid, Sr & Jr Standing Counsel for Income Tax Department along with Ankit Singh, Adv

ORDER

Counsel for the Petitioner Companies is present. At this stage, the Counsel for M/S Mahabali Farms Private Limited which is the Transferor Company No.5 in the Scheme of Amalgamation, is present and submitted that CA-49/2018 has been filed for the restoration of CA-124/2018 which was dismissed for non-prosecution on 2nd May, 2018. CA No.49/2018 is not listed. On mentioning the CA, No.49/2018 is allowed and the Order passed on 2nd May, 2018 is set aside and the CA-124 of 2018 is restored to the original position.

The Registry is directed to listCA-124 of 2018 on **15.2.2021** along with the main petition.

-Sd-

(NARENDER KUMAR BHOLA)
MEMBER (TECHNICAL)

-Sd-

(CH. MOHD. SHARIEF TARIQ)
MEMBER (JUDICIAL)

Surjit